

PART -VII

MISCELLANEOUS

26. **Service of orders, notices etc.**:- Every order, notice and other process made or issued under these rules, shall be served in person on the Railway servant concerned or communicated to him by registered post.

26-A. **Service of orders, notices etc. on behalf of the Railway Board or President** :- Any of the following officers in the Ministry of Railways shall be competent to sign on behalf of the Railway Board or President any notice, process, order, etc. made or issued under these rules: -

- (i) Secretary, Railway Board/ Joint Secretary/Deputy Secretary.
- (ii) Executive Director /Director/ Joint Director.

27. **Power to relax time limit and to condone delay** :- Save as otherwise expressly provided in these rules, the authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time limit specified in these rules for anything required to be done under these rules or condone any delay.

28. **Supply of copy of Commission's advice** :- Wherever the Commission is consulted as provided in these rules, a copy of the advice by the Commission and, where such advice has not been accepted, also a brief statement of the reasons for such non-acceptance, shall be furnished to the Railway servant concerned alongwith a copy of the order passed in the case, by the authority making the order.

29. **Repeal and saving** :-

(1) The Discipline and Appeal Rules for Railway servants, other than those employed in the Railway Protection Force, in force with effect from the 1st August, 1961 and any orders issued thereunder in so far as they are inconsistent with these rules, are hereby repealed:

Provided that –

- (a) such repeal shall not affect the previous operation of the said rules, or any order made, or anything done, or any action taken, thereunder; and
- (b) any proceedings under the said rules, pending at the commencement of these rules, shall be continued and disposed of, as far as may be, in accordance with the provisions of these rules, as if such proceedings were proceedings under these rules.

(2) Nothing in these rules shall be construed as depriving any person to whom these rules apply, of any right of appeal which had accrued to him under the rules or orders in force before the commencement of these rules.

(3) An appeal pending at the commencement of these rules against an order made before such commencement, shall be considered and orders thereon shall be made, in accordance with these rules, as if such orders were made and the appeal were preferred under these rules.

(4) As from the commencement of these rules, any appeal or application for revision and/or review against any orders made before such commencement, shall be preferred or made under these rules, as if such orders were made under these rules:

Provided that nothing in these rules shall be construed as reducing any period of limitation for any appeal or revision and/or review provided by any rule in force before the commencement of these rules.

30. **Removal of doubts** - If any doubt arises as to the interpretation of any of the provisions of these rules, the matter shall be referred to the President through the Railway Board, and the President shall decide the same.

31. **Right to submit petitions to the President** - Nothing in these rules shall operate to deprive a Railway servant from exercising his right of submitting a petition to the President in accordance with the instructions contained in Appendix II to the Indian Railway Establishment Code, Volume I (Fifth Edition-1985).
